Counsel Brief: Open-Source Call Defense Software

Project "anticall" (working name CallShield Network, not trademark-cleared) · github.com/Gr0wthHacker/anticall · Oct 27, 2026 · DRAFT, not legal advice

What it is

Self-hostable, AGPL-3.0 software that (1) screens a user's own inbound calls, (2) lets the user authorize an automated **callback** to a recent spam caller to identify who is behind the call (company, seller, transfer target), and (3) builds an evidence file and drafts FTC/FCC/carrier complaints for the user to review and file. Pre-alpha; built on synthetic and mock telephony only.

> **Built-in limits:** no auto-redial or bulk dialing; callbacks only to a logged inbound caller with STIR/SHAKEN attestation A, within 72h, 8am–9pm, one user tap each, max 2 per number per 30 days, 5 per user per day, 3 per number across the instance; the callee hears a fixed "automated assistant" disclosure before any question; wrong-number or stop-calling blocklists the number permanently; no voice biometrics; local processing only; the AI has no dial tool; live speech processing, outbound AI, agency submission and community sharing are all **off by default**; no output ever says a violation is proven or states damages.

Questions we need answered

1. **Callbacks (gates G1–G5, table below).** Is a single disclosed, automated return call to a number that called the user lawful (47 USC 227(b) consent theory, state automated-dialer laws, 47 USC 223)? How much exposure arises if an A-attested number was spoofed? What attempt caps and disclosure wording do you require?
2. **Recording and live AI processing.** For inbound screening and outbound calls, what consent or notice is required, by state and across state lines, for (a) live speech-to-text, (b) saving audio, (c) saving transcripts, (d) sending audio to a remote AI vendor? Please fill the jurisdiction matrix (all states currently "UNKNOWN").
3. **Developer and operator exposure.** What liability attaches to the maintainer who publishes source, a self-hoster, and any future hosted operator? Is the disclaimer wording adequate, and are any statements overclaiming?
4. **Licensing.** Confirm AGPL-3.0-only versus alternatives (e.g. Apache-2.0); compatibility of third-party models, voices and code; whether a separate acceptable-use policy can apply to hosted services only.
5. **Evidence and complaints.** Are our evidence labels (observed / claimed / inferred / user-attested) and export wording acceptable? Review the filing attestation text, the FCC/FTC/carrier templates, and whether any agency offers an approved submission channel (we currently only do manual handoff).
6. **Privacy.** State privacy and consumer-rights obligations for call metadata and stored media; retention defaults (metadata 90d, audio/transcripts 30d); deletion limits and legal holds; the required operator privacy notice.
7. **Community sharing (later).** Defamation and false-attribution risk, minimum anonymity standards, takedown process.
8. **Entity, name, insurance.** Recommended entity structure, trademark clearance of the name, and insurance.
9. **Provider terms.** Do SIP and AI vendors permit automated/AI-voice calling under their terms?

Callback release gates (all OPEN, all block shipping)

Gate	Blocks	Question

G1 Consent theory	All callbacks	Does an inbound call give implied prior express consent under 47 USC 227(b) for one disclosed, automated return call?
G2 Spoof exposure	All callbacks	Exposure if an A-attested number was still spoofed; is the A-attestation gate sufficient?
G3 Listen window	Pre-disclosure extraction	Is live local extraction before disclosure, nothing stored, "recording" under all-party laws (e.g. Cal. Penal Code 632.7)? Fallback exists: disclose on answer.
G4 State dialer laws	All callbacks	Do automated/prerecorded-message laws (Indiana first) apply to a noncommercial return call?
G5 Provider terms	Provider choice	Do the SIP trunk and any model/voice vendors permit this use?

Decisions we need from counsel (open log D-001 to D-008)

ID	Decision	Our prototype default
D-001	First telephony transport/provider	Asterisk + generic SIP trunk behind an adapter
D-002	Live speech-to-text consent gate by jurisdiction	Deny unless consent and jurisdiction allow
D-003	Hosted vs fully local processing	Local first
D-004	AGPL-3.0-only vs permissive	AGPL-3.0-only (provisional)
D-005	Incident-to-case match threshold	Conservative; human review for attribution
D-006	FTC/FCC forms; any approved submission API	Manual handoff only
D-007	Retention and deletion by jurisdiction	PRD design defaults
D-008	Legal entity, trademark, insurance	None yet

Documents to review (all marked DRAFT in the repo)

- docs/legal/: acknowledgment-v1, filing-attestation-v1, recording-consent-matrix, regulatory-notes, counsel-checklist, release-gates
- Root: DISCLAIMER.md, ACCEPTABLE_USE.md, PRIVACY.md, LICENSE, SECURITY.md
- Full spec: docs/prd/PRD_v3.md (Sections 12, 19 and 21, Appendices A–F)

What we need back

Written sign-off or required changes on each numbered question, a filled recording matrix, answers to D-001 to D-008, and a go/no-go per capability: **(a)** inbound screening, **(b)** live transcription, **(c)** recording, **(d)** automated callback, **(e)** pre-disclosure listen window, **(f)** agency submission, **(g)** hosted service. Until then, none of these is enabled for real use.